

2:00 PM

LINE 4

24-CIV-05915

COUNTY OF SAN MATEO VS. JOHN ANTHONY DE LEON, ET AL.

COUNTY OF SAN MATEO
JOHN ANTHONY DE LEON

JESUS PEREDA
MIKHAIL MDINARADZE

PLAINTIFF COUNTY OF SAN MATEO'S MOTION TO COMPEL PLAINTIFF ENCORE TEXTILE SERVICE LLC'S RESPONSES
TO REQUESTS FOR PRODUCTION, SET ONE AND FOR SANCTIONS

TENTATIVE RULING:

See ruling on plaintiff's motion to compel responses to form interrogatories, which tentative is
incorporated by reference as if set forth fully herein.

2:00 PM

LINE 5

25-CIV-09289

MICHAEL S. HARTMAN VS. TRACY FLEMING, ET AL.

MICHAEL S. HARTMAN
TRACY FLEMING

PRO SE

AMENDED MOTION FOR LEAVE TO FILE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

The Amended Motion of Plaintiff Michael S. Hartman (“Plaintiff”) for Leave to File Third Amended Complaint is GRANTED. (See *Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530 [If a motion to amend is timely made and will not prejudice the opposing party, it is error to refuse permission to amend.].) No defendant has appeared in this action, and therefore no prejudice has been shown in allowing the amended complaint to be filed and served. Based on the liberal policy allowing amendment, the court therefore grants the motion.

The current pleading is the First Amended Complaint. On May 13, 2026, Plaintiff filed a motion for leave to file a second amended complaint. Then, on June 12, 2026, Plaintiff filed this amended motion for leave to file a third amended complaint that he appears to claim supersedes the prior motion for leave. The court therefore considers only this amended motion. However, no second amended complaint has been filed. Therefore, in amending, Plaintiff is to label his proposed pleading (Exh. 1 to Plaintiff’s Amended Declaration) as the Second Amended Complaint instead of a third amended complaint.

Plaintiff is to file the Second Amended Complaint with the court by July 24, 2026, and serve it on Defendants within sixty (60) days of the filing. (Cal. Rules of Court, rule 3.110(b).) The court vacates the October 14, 2026 case management conference and resets the conference for Wednesday January 20, 2027 at 9:00 a.m. before the Civil Commissioner, 800 North Humboldt St., San Mateo CA, 94401. Zoom appearances are allowed.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
